THE NATIONAL COMPANY LAW TRIBUNAL

BENCH III, AT NEW DELHI

UNDER SECTIONS 230-232 and other applicable provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

CA (CAA)-8(ND)/2021

IN THE MATTER OF SCHEME OF AMALGAMATION OF

AADI BEST BLOWER PRIVATE LIMITED

...(Transferor / Applicant Company No.1)

AND

MEADOW INFRADEVELOPERS PRIAVTE LIMITED

...(Transferor / Applicant Company No.2)

AND

RGV FININVEST PRIVATE LIMITED

...(Transferor / Applicant Company No.3)

AND

SHIVVALLEY STEELS AND ALLOYS PRIVATE LIMITED

...(Transferor / Applicant Company No.4)

AND

TRN IMPEX PRIVATE LIMITED

...(Transferor / Applicant Company No.5)

AND

SNEREA REALTORS PRIVATE LIMITED

...(Transferor / Applicant Company No.6)

AND

AADI BEST INFRAHEIGHT PRIVATE LIMITED

...(Transferor / Applicant Company No..7)

AND

GENEX DEVELOPERS PRIVATE LIMITED

...(Transferor / Applicant Company No.8)

AND

ESSEL BUILDTECH PRIVATE LIMITED

...(Transferor / Applicant Company No.9)

WITH

SHRISTHI COMPUTERS PRIVATE LIMITED

...(Transferee / Applicant Company No.10)

Order pronounced on 27.05.2022

CORAM:

SH. BACHU VENKAT BALRAM DAS
HON'BLE MEMBER (JUDICIAL)

SH.VIRENDRA KUMAR GUPTA
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: FCS Aviansh Kaur, Rishabh Sachdeva and Rohan Bolia, Advocates

MEMO OF PARTIES

AADI BEST BLOWER PRIVATE LIMITED
Having its Registered Office at:
104, Rishabh IPEX MALL,
IP Extension, Delhi, 110092

..(Transferor/Applicant Company No.1)
AND

MEADOW INFRADEVELOPERS PRIVATE LIMITED
Having its Registered Office at:
104, Rishabh IPEX MALL,
IP Extension, Delhi, 110092

..(Transferor /Applicant Company No.2)
AND

RGV FININVEST PRIVATE LIMITED
Having its Registered Office at:
196, LGF, Ram Vihar
Delhi, 110092

...(Transferor/Applicant Company No.3)

AND

SHIVVALLEY STEELS AND ALLOYS PRIVATE LIMITED
Having its Registered Office at:
Ground Floor, Plot No.16, Rishabh Coporate Tower,
Karkardooma Community Centre, Delhi, 110092

...(Transferor/Applicant Company No.4)
AND

TRN IMPEX PRIVATE LIMITED
Having its Registered Office at:
104, Rishabh IPEX MALL,
L.P. Extension, Delhi, 110092

...(Transferor/Applicant Company No.5)
AND

SNEREA REALTORS PRIVATE LIMITED
Having its Registered Office at:
104, Rishabh IPEX MALL,
IP Extension, Delhi, 110092

...(Transferor/Applicant Company No.6)

AND

AADI BEST INFRAHEIGHT PRIVATE LIMITED
Having its Registered Office at:
Ground Floor, Plot No 16, Rishabh Corporate Tower,
Karkardooma Community Centre, Delhi, 110092

...(Transferor/Applicant Company No.7)

AND

GENEX DEVELOPERS PRIVATE LIMITED
Having its Registered Office at:
104, Rishabh IPEX MALL
IP Extension, Delhi, 110092

...(Transferor/Applicant Company No.8)

AND

ESSEL BUILDTECH PRIVATE LIMITED
Having its Registered Office at:
104, Rishabh IPEX MALL,
IP Extension, Delhi, 110092

...(Transferor/Applicant Company No.9)

AND

SHRISTHI COMPUTERS PRIVATE LIMITED
Having its Registered Office at:
Ground Floor, Plot No.16, Rishabh Corporate Tower,
Karkardooma Community Centre, Delhi, 110092

...(Transferee/Applicant Company No.10)

ORDER

Per- Sh. Bachu Venkat Balaram Das, Hon'ble Member (Judicial)

1. This Application has been jointly filed by the Applicant Companies under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, duly supported by separate affidavits of the Applicant Companies, for seeking appropriate directions for dispensing with the holding/convening of the meetings of the respective shareholder and creditors of all the Applicant Companies for approval of the proposed Scheme of Amalgamation (hereinafter referred to as the "**Scheme**") has been placed on record along with Joint Application.

2. It is represented that the registered office of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the said Joint Application falls within the jurisdiction of this Tribunal

3. Transferor Company No.1 was incorporated under the provisions of Companies Act, 1956 on 11th July, 2008 in the name and style of **"AADI BEST BLOWER PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U31909DL2008PTC180802. The Authorized Share Capital of the Transferor Company No.1 is 1,50,00,000 divided into 15,00,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.1,10,36,000/- divided into 11,03,600 equity shares of Rs.10/- each.

4. Transferor Company No.2 was incorporated under the provisions of Companies Act, 1956 on 31st December, 2007 in the name and style of **"MEADOW INFRADEVELOPERS PRIAVTE LIMITED"** with the office of

Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U45400DL2007PTC172046. The Authorized Share Capital of the Transferor Company No.2 is 5,00,00,000 divided into 50,00,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.1,60,80,000/- divided into 16,80,000 equity shares of Rs.10/- each.

5. Transferor Company No.3 was incorporated under the provisions of Companies Act, 1956 on 12th July, 1995 in the name and style of **"RGV FININVEST PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U74899DL1995PTC070728. The Authorized Share Capital of the Transferor Company No.3 is Rs.5,00,00,000/- divided into 50,00,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.3,12,90,560/- divided into equity shares of Rs.10/- each.

6. Transferor Company No.4 was incorporated under the provisions of Companies Act, 1956 on 13th July, 2009 in the name and style of **"SHIVVALLEY STEELS AND ALLOYS PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U2720DL2009PTC192716 The Authorized Share Capital of the Transferor Company No.4 is 5,00,00,000 divided into 50,00,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.1,36,00,000/- divided into 13,60,000 equity shares of Rs.10/- each.

7. Transferor Company No.5 was incorporated under the provisions of Companies Act, 1956 on 03rd September, 2004 in the name and style of **"TRN IMPEX PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U51909DL2004PTC128815. The Authorized Share Capital of the Transferor Company No.5 is Rs.1,00,00,000/- divided into 10,00,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up

capital is Rs.99,07,340/- divided into 9,90,734 equity shares of Rs.10/- each.

8. Transferor Company No.6 was incorporated under the provisions of Companies Act, 1956 on 04th January, 2006 in the name and style of **"SNEREA REALTORS PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U74899DL2006PTC144492. The Authorized Share Capital of the Transferor Company No.6 is Rs.5,00,00,000/- divided into 50,00,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.1,61,80,000/- divided into 16,18,000 equity shares of Rs.10/- each.

9. Transferor Company No.7 was incorporated under the provisions of Companies Act, 1956 on 24th November, 2011 in the name and style of **"AADI BEST INFRAHEIGHT PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U70102DL2011PTC227892. The Authorized Share Capital of the Transferor Company No.7 is Rs.1,00,000/- divided into 10,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.1,00,000/- divided into 10,000 equity shares of Rs.10/- each.

10. Transferor Company No.8 was incorporated under the provisions of Companies Act, 1956 on 11th February, 2010 in the name and style of **"GENEX DEVELOPERS PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U45400DL2010PTC198973. The Authorized Share Capital of the Transferor Company No.8 is Rs.1,00,000/- divided into 10,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.1,00,000/- divided into 10,000 equity shares of Rs.10/- each.

11. Transferor Company No.9 was incorporated under the provisions of Companies Act, 1956 on 04th February, 2010 in the name and style of **"ESSEL BUILDTECH PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U45400DL2010PTC198734. The Authorized Share Capital of the Transferor Company No.9 is Rs.1,00,000/- divided into 10,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.1,00,000/- divided into 10,000 equity shares of Rs.10/- each.

12. Transferee Company was incorporated under the provisions of Companies Act, 1956 on 04th May, 2005 in the name and style of **"SHRISTHI COMPUTERS PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. U72200DL2005PTC135820. The Authorized Share Capital of the Transferee Company is Rs.75,00,000/- divided into 7,50,000 Equity Shares of Rs.10/- each, while its issued, subscribed and paid-up capital is Rs.69,20,000/- divided into 6,92,000 equity shares of Rs.10/- each.

13. It is further submitted that Applicant Companies 1 to 10 do not have any Secured Creditors and Certificate by Statutory Auditors verifying the list of Secured as well as unsecured Creditor is placed on record.

14. It is submitted that Transferor Company No.1 has 3 Equity Shareholders and 1 Unsecured Creditor and no Secured Creditors. The Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 8)**. In respect of Shareholders and Unsecured Creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

15. It is submitted that Transferor Company No.2 has 9 Equity Shareholders and do not have any Secured or Unsecured Creditor. The

Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 15)**. In respect of Shareholders, prayer has been made for dispensing the convening of their meeting.

16. It is submitted that Transferor Company No.3 has 11 Equity Shareholders and do not have any Secured or Unsecured Creditor. The Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 23)**. In respect of Shareholders, prayer has been made for dispensing the convening of their meeting.

17. It is submitted that Transferor Company No.4 has 6 Equity Shareholders and do not have any Secured or Unsecured Creditor. The Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 30)**. In respect of Shareholders, prayer has been made for dispensing the convening of their meeting.

18. It is submitted that Transferor Company No.5 has 5 Equity Shareholders and 2 Unsecured Creditor and no Secured Creditors. The Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 37)**. In respect of Shareholders and Unsecured Creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

19. It is submitted that Transferor Company No.6 has 8 Equity Shareholders and do not have any Secured or Unsecured Creditor **(Annexure 44)**. The Certificate of Chartered Accountant in respect of creditors has also been placed on record. In respect of Shareholders, prayer has been made for dispensing the convening of their meeting.

20. It is submitted that Transferor Company No.7 has 2 Equity Shareholders and 2 Unsecured Creditors and no Secured Creditors. The

Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 51)**. In respect of Shareholders and Unsecured Creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

21. It is submitted that Transferor Company No.8 has 2 Equity Shareholders and 1 Unsecured Creditor and no Secured Creditors. The Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 58)**. In respect of Shareholders and Unsecured Creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

22. It is submitted that Transferor Company No.9 has 2 Equity Shareholders and 1 Unsecured Creditor and no Secured Creditors. The Certificate of Chartered Accountant in respect of creditors has also been placed on record. In respect of Shareholders and Unsecured Creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

23. It is submitted that Transferee Company has 4 Equity Shareholders and do not have any Secured or Unsecured Creditor. The Certificate of Chartered Accountant in respect of creditors has also been placed on record **(Annexure 72)**. In respect of Shareholders, prayer has been made for dispensing the convening of their meeting.

24. The Equity Shareholders of the Applicant Companies 1 to 10 have given their consent affidavit and the same is placed on record.

25. No Objection Certificate of Unsecured Creditors to dispense with the holding of meeting is placed on record.

26. We have perused the Joint Applications and the connected documents/annexures filed herewith including the Scheme of Amalgamation contemplated between the Applicant Companies.

27. It is further submitted that the Board of Directors of the of all the Applicant Companies vide separate Board Meetings, held on 14.09.2019 respectively have unanimously approved the proposed Scheme of Amalgamation and copies of the said Board Resolutions have been placed on record by the Applicant Companies.

28. All the Applicants have filed its respective Memorandum and Articles of Association. The Applicants have also filed their audited financial statements for the year ending 31.03.2019.

29. All the Companies have submitted that no investigation proceedings are pending under the provisions of Companies Act, 195 and/or 2013 against any of the Applicant Companies. In this regard, a separate affidavit in accordance to Section 230(2)(a) has been placed on record.

30. Further, it has been stated in the Application that the proposed Scheme is not prejudicial to the interest of Shareholders and Creditors of the Applicant Companies and their respective Shareholders and Creditors.

31. The certificates of the Statutory Auditors of all the Applicant Companies confirming that the Accounting Treatment in the Scheme is in compliance of and in conformity with Section 133 of the Companies Act, 2103 have been placed on record.

32. Taking into consideration the Application filed jointly by the Applicant Companies the following directions are issued:

A. In relation to Transferor Company No.1

i. With respect to Equity Shareholder

Meeting of all the 3 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.1, the requirement of convening the meeting of Secured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

Meeting of 1 Unsecured Creditor is directed to be dispensed with pursuant to the power of this Tribunal under Section 230(9) of the Companies Act, 2013. The Consent Affidavit of the Unsecured Creditor has been placed on record.

B. In relation to Transferor Company No.2

i. With respect to Equity Shareholder

Meeting of all the 9 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.2, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

As there is no Unsecured Creditors in the Transferor Company No.2, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

C. In relation to Transferor Company No.3

i. With respect to Equity Shareholder

Meeting of all the 11 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.3, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

As there is no Unsecured Creditors in the Transferor Company No.3, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

D. In relation to Transferor Company No.4

i. With respect to Equity Shareholder

Meeting of all the 6 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.4, the requirement of convening the meeting of Unsecured Creditors

does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

As there are no Unsecured Creditors in the Transferor Company No.4, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

E. In relation to Transferor Company No.5

i. With respect to Equity Shareholder

Meeting of all the 5 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.5, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

Meeting of all the 2 Unsecured Creditors is directed to be dispensed with pursuant to the power of this Tribunal under Section 230(9) of the Companies Act, 2013. The Consent Affidavit of the Unsecured Creditors has been placed on record.

F. In relation to Transferor Company No.6

i. With respect to Equity Shareholder

Meeting of all the 8 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.6, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

As there is no Unsecured Creditor in the Transferor Company No.6, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

G. In relation to Transferor Company No.7

i. With respect to Equity Shareholder

Meeting of all the 2 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.7, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

Meeting of 2 Unsecured Creditor is directed to be dispensed with pursuant to the power of this Tribunal under Section 230(9) of the Companies Act, 2013. The Consent Affidavit of the Unsecured Creditor has been placed on record.

H. In relation to Transferor Company No.8

i. With respect to Equity Shareholder

Meeting of all the 2 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.8, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

Meeting of 1 Unsecured Creditor is directed to be dispensed with pursuant to the power of this Tribunal under Section 230(9) of the Companies Act, 2013. The Consent Affidavit of the Unsecured Creditor has been placed on record.

I. In relation to Transferor Company No.9

i. With respect to Equity Shareholder

Meeting of all the 2 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferor Company No.9, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

Meeting of 1 Unsecured Creditor is directed to be dispensed with pursuant to the power of this Tribunal under Section 230(9) of the

Companies Act, 2013. The Consent Affidavit of the Unsecured Creditor has been placed on record.

J. In relation to Transferee Company

i. With respect to Equity Shareholder

Meeting of all the 4 Equity Shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. With respect to Secured Creditors

As there are no Secured Creditors in the Transferee Company, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

iii. With respect to Unsecured Creditors

As there is no Unsecured Creditor in the Transferee Company, the requirement of convening the meeting of Unsecured Creditors does not arise. Hence, it is hereby directed to be dispensed with as prayed by the Applicant.

33. In view of the above, the present joint application stands allowed by dispensing with the meetings of shareholders and creditors of all the applicant companies.

34. The Applicants are directed to serve notice of the proposed scheme on concerned Regional Director, Registrar of Companies, official Liquidator, Income Tax Department and other sectoral regulators, who may have significant bearings on the operations of Applicant Companies or the scheme per se along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

35. The notices to income tax authorities shall disclose sufficient details like PAN card numbers, ward numbers and assessing officers so that the proper may reply be filed.

Let the copy of the order be served to the parties.

-Sd-

BACHU VENKAT BALRAM DAS
MEMBER (JUDICIAL)

-Sd-

VIRENDRA KUMAR GUPTA
MEMBER (TECHINCAL)

The order is pronounced Under Rule 151 of National Company Law Tribunal Rules, 2016.

Madhu Narula

Madhu Narula
(Court Officer)